

25STCV14758 25STCV14758

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Case Number: 25STCV14758 Hearing Date: July 21, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 21, 2026 TRIAL

DATE: December 8, 2026

CASE: Jorge Vargas v. Melissa Solis, et al.

CASE NO.: 25STCV14758

MOTION

FOR SUMMARY ADJUDICATION

MOVING PARTY: Plaintiff Jorge Vargas

RESPONDING PARTIES: Defendants Melissa

Solis and Maria Vargas

CASE

HISTORY:

5/20/2025:

Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Jorge Vargas alleges that he and Defendant Melissa Solis each own 50% of the single-family residence located at 4309 Lindsey Ave, Pico Rivera, CA 90660. Plaintiff filed this action to have the property partitioned.

Plaintiff Jorge Vargas moves for summary adjudication.

TENTATIVE RULING:

Plaintiff Jorge Vargas' motion for summary adjudication is DENIED.

Plaintiff
to give notice.

DISCUSSION:

Evidentiary Objections

Defendants' objections are
OVERRULED.

Plaintiff's objections are OVERRULED. As to the objections to Ricardo Solis and Leehmus declarations, while the Court "must" rule on all evidentiary objections made at the summary judgment stage, it is permitted to focus its attention on those which are "important." (See Reid v. Google, Inc. (2010) 50 Cal.4th 512, 532; see also Code Civ. Proc., § 437c, subd. (q) [the court need only rule those objections to evidence that were material in the disposition of the MSJ].) The Court did not rely on this evidence and thus, does not rule on the objections.

Request for Judicial Notice

Plaintiff
seeks judicial notice of (1) Plaintiff's Complaint in this action; (2) Defendant Vargas' answer; (3) Defendants Solis and Ricardo Solis' Answers; (4) Grant Deed; (5) Interspousal Transfer Deed; (6) Deed of Trust; and (7) Vargas' declaration in a dissolution proceeding.

The

requests are granted. It is well-established that courts may take judicial notice of the existence of recorded deeds (Evans v. California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 549,) but not as to hearsay statements or disputable facts asserted therein. (Poseidon v. Woodland (2007) 152 Cal.App.4th 1106, 1117.) Accordingly, the Court will judicially notice the existence of the grant deeds and the Court filings, but not the truth of the material asserted therein.

Defendant

seeks judicial notice of this Court's 3/26/26 minute order.

The

request is granted.

Motion For Summary

Adjudication

Plaintiff seeks summary adjudication on his sole cause of action for partition.

"Under California law, the term 'partition' signifies 'the procedure for segregating and terminating common interests in the same parcel of property.'" (Citation.) (14859 Moorpark Homeowner's Ass'n v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1404-1405 (Moorpark).)

Code of Civil Procedure

section 872.720(a)

declares that "[i]f the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property." (§ 872.720, subd. (a).) When the trial court "determines the interests of the parties in the property and orders the partition of the property," it shall decide the manner of partition "unless [this] is to be later determined." (§ 872.720, subd. (a).) "The manner of partition may be 'in kind'—i.e., physical division of the property [citation] according to the parties' interests as determined in the interlocutory judgment. [Citations.] Alternatively, if the parties agree or the court concludes it

'would be more equitable,' the court may order the property sold and the proceeds divided among the parties." The third option, "[w]hen the interests of all parties are undisputed or have been adjudicated," and the parties agree (§ 873.910), is partition by appraisal. (See § 873.910 et seq.) (Cummings v. Dessel (2017) 13 Cal.App.5th 589; § 872.820.)

The co-owner of a property has "an absolute right to partition unless barred by a valid waiver." (LEG Investments v. Boxler (2010) 183 Cal.App.4th 484, 493.)

Based on the above, Plaintiff must prove the following: (1) Plaintiff has an ownership interest in the Property; (2) a partition by sale of the Property is more equitable than a partition in kind; and (3) Plaintiff did not waive the right to partition the Property.

As to the first element, Plaintiff offers the grant deed in support of his argument that he had 50% ownership of the property and Defendant Solis has 50% ownership. (RJN 4.) Plaintiff contends that the presumption of title in Evidence Code section 662 applies here.

Evidence

Code section 662 states that the owner of legal title to property is presumed to be the owner of the beneficial title. This presumption may be rebutted only by clear and convincing proof. (Evidence Code section 662.) To rebut the presumption, the opposing party must show that the character of the property was held differently, including by establishing that the property's character was changed by an agreement or mutual understanding. (Pearce v. Briggs (2021) 68 Cal. App. 5th 466, 477.) Section 662 thus codifies the common law rule that oral trusts in derogation of title are disfavored and must be proved by clear and convincing evidence. "Allegations that deeds absolute are actually mortgages, that conveyances are subject to a trust, and that legal title does not represent beneficial ownership have ... been historically disfavored because society and the courts have a reluctance to tamper with duly executed instruments and documents of legal title." (quoting Weiner v. Fleischman (1991) 54 Cal.3d 476, 489, People v. Semaan (2007) 42 Cal. 4th 79, 88, 163 P.3d 949, 954.)

First, while the existence of the document is judicially noticeable, the truth of the material therein is not. Plaintiff did not separately authenticate

this document, and thus, the Court cannot consider the truth of the matters in the deed, including who the legal owners are. Next, while Plaintiff submits his declaration that the only co-owners of record title for the property are Plaintiff and Defendant Melissa Solis as joint tenants (Vargas Decl., ¶ 2), this is a conclusory statement. As such, Plaintiff has not met his initial burden on summary judgment to show there are no triable issues of material fact as to whether he is entitled to partition.

Even if Plaintiff met his burden on summary judgment to show that he is the co-owner as indicated on the deed, Defendants have met their burden to present clear and convincing evidence that there was a mutual understanding that the character of the property was to be held differently. As such, triable issues of material fact exist as to the parties' interests in the property as Maria and Melissa have submitted testimony that the intent was for Plaintiff and Defendant to hold title for safekeeping until she passes, and Maria is the beneficial owner and she has treated the property as her own by paying the mortgage and bills and by living there. This evidence, all together, shows there are triable issues of fact.

Specifically, Defendants submit evidence that the home has been Defendant Maria's primary residence since she purchased it with her former husband in 1979. (M. Solis Decl., ¶ 2; M. Vargas Decl., ¶ 2.) In 2007, the parents transferred bare legal title to two of the children – Plaintiff and Defendant – as joint tenants, for safekeeping and estate-planning purposes. (M. Solis Decl., ¶ 4; M. Vargas Decl., ¶ 3.) The agreement was that only upon death of both of their parents, would Plaintiff and Defendant sell the home and divide the proceeds equally among the children. The parents chose to place title in only Plaintiff and Defendant, rather than including their other siblings because of concerns of the other siblings' personal circumstances at the time. (Id.) Maria Vargas is primarily Spanish speaking and did not fully understand the legal implications of the deed at that time; had she understood the transfer could be treated as an outright gift, she would have never signed it. (M. Vargas Decl., ¶ 4.) Plaintiff and Defendant did not believe they had any right to sell the property while their parents were alive. It was the parents' home. (M. Solis Decl., ¶ 5.) The mortgage, property taxes, homeowners insurance, and utilities were paid by their parents and were in one of both of their names. Defendant occasionally helped starting in 2023 because the mother was on a fixed disability income. (M. Solis Decl., ¶ 6; M. Vargas Decl., ¶ 5.) Neither Plaintiff nor Defendant paid to acquire the property. (Id.) Plaintiff paid the mortgage a few times without Maria's permission after he filed suit in 2024. (M. Vargas Decl., ¶ 5.)

In 2024, Plaintiff asked Maria for permission to claim the home on his income taxes, and she said no. She states that he would not have needed to ask her permission if he believed the home belonged to him—he asked because he understood the home is Maria's. After she said no, he became hostile towards her, and once it became abusive, he moved out of the home in 2024. (M. Vargas Decl., ¶ 9.)

Plaintiff

contends in the motion that even if Defendants are arguing an oral trust, any such oral agreement would be unenforceable under the statute of frauds. (Civ. Code § 1624(a)(3).) Civil Code section 1624(a)(3) states: "The following contracts are invalid, unless they are in writing and subscribed by the party to be charged An agreement for ... the sale of real property; such an agreement, if made by the party sought to be charged, is invalid, unless the authority of the agent is in writing, subscribed by the party sought to be charged." But simply because an oral agreement for the sale of property would be invalid as a contract does not mean it cannot be offered in evidence in opposition to a motion for summary judgment to show the parties' intent.

Inconsistent Discovery Responses

Plaintiff

also argues that Defendant Solis' verified discovery response, she admits that Plaintiff is a co-owner of the property. (U.F. No. 5.) For example, Request for Admission No. 2 states: admit that Plaintiff is a co-owner of the property, which Defendant Solis responded "admit". (Plaintiff's Exs. 9-10.) Request for Admission No. 1 stated: admit that Plaintiff is listed as a co-owner of record on the grant deed to the property, to which Defendant Solis responded "admit". (Id.) Thus, Plaintiff contends this evidence affirmatively establishes that Plaintiff holds ownership interest.

In

opposition, Defendants argue that these admissions speak to record title, not beneficial ownership, and are expressly qualified by Defendants' other verified responses describing the family trust arrangement. (UMF Nos. 7, 9, 16.)

Plaintiff

cites to no caselaw for the proposition that inconsistent responses in discovery entitles Plaintiff to summary adjudication or would allow Plaintiff to meet his burden. It would be one thing if there were no other discovery responses denying Plaintiff's ownership. But in fact, Defendant Solis responded

to Defendant's form interrogatories that although the deed was transferred to them, it was for safekeeping (UMF No. 7), which is entirely consistent with their position in opposition to this motion. Further, Defendants argue that the admission was for legal title. Thus, it appears, at the very least, that there was a miscommunication or misunderstanding in the discovery response.

Judicial Estoppel

Next,

Plaintiff contends that Defendant Vargas made a prior judicial statement that she has no interest in any real property in her dissolution proceedings. (U.F. No. 22.) Thus, he argues that judicial estoppel bars her from taking an inconsistent position.

"Judicial estoppel is an equitable doctrine that precludes a party from gaining an advantage by asserting one position, and then later seeking an advantage by taking a clearly inconsistent position." (Hamilton v. State Farm Fire & Casualty Co. (9th Cir. 2001) 270 F.3d 778, 782.) Factors in determining whether to apply judicial estoppel include: (1) whether a party's later position is clearly inconsistent with its earlier position; (2) whether the party has succeeded in persuading a court to accept that party's earlier position so that judicial acceptance of an inconsistent position would create the perception that either the first or the second court was misled; and (3) whether the party seeking to assert an inconsistent position would derive an unfair advantage or impose an unfair detriment on the opposing party if not estopped. (See id.)

Plaintiff argues that Vargas' position in the dissolution proceedings that she has no interest in any property is clearly inconsistent with her position now that she is the 100% owner of the property. However, there is no dispute that Vargas did not hold legal title. Thus, the declaration in the dissolution proceeding where she wrote N/A under the column that seeks a description of property owned is not entirely inconsistent with her position here. The dissolution declaration did not ask if she had a beneficial interest in property. Further, even if it was inconsistent, for judicial estoppel to apply, Plaintiff is required to show Vargas succeeded in persuading a court to accept her position so that judicial acceptance of an inconsistent position would create the perception that either the first or the second court was misled. Plaintiff has not addressed this factor. Thus, judicial estoppel does not apply here.

Plaintiff's

Argument Regarding a Rebuttable Gift Presumption in the Reply

For the

first time in the Reply, Plaintiff argues that the challenged transfer raises a rebuttable gift presumption. As this argument was made for the first time in the Reply, Defendants have not had an opportunity to respond to it and provide evidence. Thus, it cannot be considered. Plaintiff's motion addressed the arguments Defendants made in opposition, namely that the transfer was not intended to be a gift and it was for safekeeping as Plaintiff presented this evidence in his separate statement, and thus, he could have included this argument in the moving papers, but did not. Even if the Court did consider it, Defendants' evidence that the transfer was not intended to be a gift rebuts the presumption.

Because

there are triable issues of material fact as to the first element, the Court does not reach the other elements. Plaintiff's motion for summary adjudication is DENIED.

IT IS SO ORDERED.

Dated: July 21, 2026

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.